SOFTWARE LICENSE AGREEMENT

Section 1. Parties and Effective Date

This Software License Agreement ("Agreement") is entered into effective as of January 1, 2024 ("Effective Date"), by and between Acme Inc., a Delaware corporation ("Licensor"), and Wonka Corp., a California corporation ("Licensee").

Section 2. Grant of License

Licensor grants to Licensee a non-exclusive, non-transferable license to use the software known as "Acme Platform Pro" ("Software"), including all documentation and updates, solely for Licensee's internal business purposes. This license does not include the right to sublicense, modify, or create derivative works without prior written consent from Licensor.

Section 3. Permitted Use

Licensee may install and operate the Software on a maximum of fifty (50) concurrent user seats. Any use beyond this scope requires purchase of an additional license. Licensee shall not reverse-engineer, decompile, or attempt to derive the source code of the Software. Licensee shall not use the Software for service bureau purposes, time-sharing, or to provide services to third parties.

Section 4. Restrictions

Licensee shall not remove or alter any proprietary notices, labels, or marks on the Software. Licensee shall not use the Software in violation of applicable laws or regulations. The Software may not be installed on any computer or system connected to the internet without written authorization from Licensor. Any unauthorized use shall immediately terminate this license.

Section 5. License Fee and Payment Terms

Licensee shall pay Licensor a non-refundable annual license fee of thirty-three thousand dollars ($33,000.00). Payment is due within thirty (30) days of invoice. The initial fee covers the first twelve months of the license term. The annual fee shall be invoiced on each anniversary of the Effective Date and is subject to modification with ninety (90) days' written notice. A late payment fee of one and one-half percent (1.5%) per month shall accrue on any unpaid balance exceeding thirty (30) days.

Section 6. Term and Renewal

This Agreement shall commence on the Effective Date and continue for an initial term of two (2) years ("Initial Term"). Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date of the then-current term.

Section 7. Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within thirty (30) days of receiving written notice of the breach.

Section 8. Termination Without Cause

Either party may terminate this Agreement without cause by providing written notice to the other party at least sixty (60) days in advance of the desired termination date. Upon termination, all rights granted herein shall immediately cease, and Licensee shall destroy all copies of the Software in its possession.

Section 9. Obligations Upon Termination

Upon termination of this Agreement, Licensee shall immediately cease all use of the Software and uninstall all copies from its computer systems. Licensee shall certify in writing its compliance with this requirement within fifteen (15) days. Sections addressing confidentiality, limitation of liability, and indemnification shall survive any termination.

Section 10. Confidentiality

Each party acknowledges that it may receive confidential information from the other party. Each party agrees to maintain such information in strict confidence and not disclose it to third parties without prior written consent.

Section 11. Limitation of Liability

Neither party shall be liable for indirect, incidental, consequential, or punitive damages arising from this Agreement, regardless of the cause of action or theory of liability.

Section 12. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to conflict of law principles.

Section 13. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations and understandings.